

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

MICAH PHILLIPS,

Plaintiff(s),

*-against-*THE CITY OF NEW YORK; NEW YORK CITY POLICE  
DEPARTMENT ("NYPD") SERGEANT LATYNA LATIMORE  
#1167, NYPD OFFICER JONATHAN MCDONALD #13239, and  
NYPD MEMBERS JOHN AND JANE DOES NO. 1-7,

Defendant(s).

Index No.

**Summons**

Date Index No. Purchased: July 2, 2024

To the above named Defendant(s)

THE CITY OF NEW YORK; NEW YORK CITY POLICE DEPARTMENT ("NYPD") SERGEANT LATYNA  
LATIMORE #1167, NYPD OFFICER JONATHAN MCDONALD #13239, and NYPD MEMBERS JOHN AND  
JANE DOES NO. 1-7,

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is a substantial part of the events & omissions giving rise to the claims were in Kings Cty. which is , because inter alii, as further pled in the complaint, Pl. and Def. City are at home in Kings Cty (see CPLR 503(a)).

Dated: Ridgewood (Queens), NY

July 2, 2024

Cohen&amp;Green P.L.L.C.

by /s/ Remy Green

Remy Green

Attorneys for Plaintiff

COHEN&amp;GREEN P.L.L.C.

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**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS**

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MICAHA PHILLIPS,

Plaintiff,

- against -

THE CITY OF NEW YORK; NEW YORK CITY  
POLICE DEPARTMENT ("NYPD") SERGEANT  
LATYNA LATIMORE #1167, NYPD OFFICER  
JONATHAN MCDONALD #13239, and NYPD  
MEMBERS JOHN AND JANE DOES NO. 1-7,

Defendants.  
----- X

**VERIFIED COMPLAINT**

**Index No.** \_\_\_\_\_

**PLAINTIFF DEMANDS A  
TRIAL BY JURY**

Plaintiff MICAHA PHILLIPS, by and through her attorneys, COHEN&GREEN P.L.L.C. and  
Gideon Orion Oliver, hereby complains of Defendants as follows:

**PARTIES, VENUE, AND JURISDICTION**

1. At all times relevant herein, Plaintiff Micah Phillips (Ms. Phillips; she/her) has  
been a resident of the City of New York, County of Kings, and State of New York.

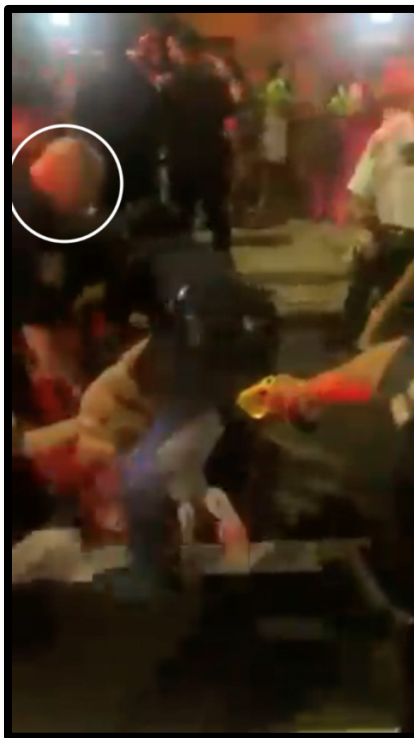
2. Defendant City of New York (the "City") is a municipal entity created and  
authorized under the laws of the State of New York. The City is authorized by law to maintain a  
police department, and does maintain the NYPD, which acts as its agent in the area of law  
enforcement and for which it is ultimately responsible. The City assumes the risks incidental to  
the maintenance of a police force and the employment of police officers.

3. At all times relevant herein, NYPD SERGEANT LATYNA LATIMORE #1167,  
NYPD OFFICER JONATHAN MCDONALD #13239, and NYPD MEMBERS JOHN AND  
JANE DOES NO. 1-7 were officers, employees, and agents of the NYPD who were personally

involved in depriving Plaintiff of Plaintiff's rights and in implementing the unconstitutional policies, practices, customs and/or conduct complained of herein, as set forth more fully below.

4. Defendants John and Jane Does No. 1-7 are currently unknown to Plaintiff beyond the role they played in Plaintiff's arrest, except as follows:

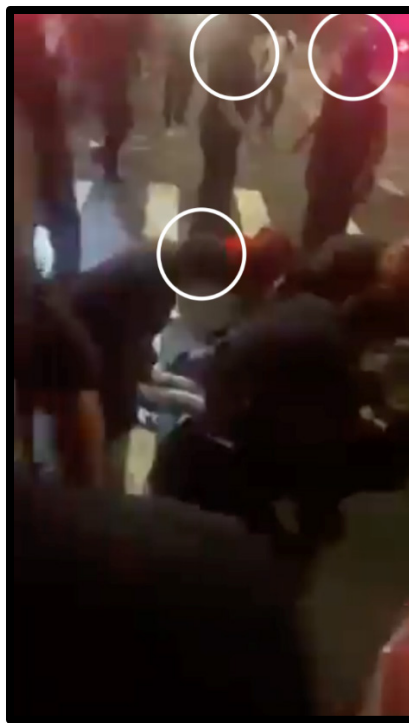
- a. Defendant John Doe 1 appears on video<sup>1</sup> as a bald white man:



- b. Defendants John Doe 2 and 3 appear on video arresting Ms. Phillips and dragging her across the pavement away from another officer and pedestrian:

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<sup>1</sup> A copy of this video will be sent to counsel for Defendants on request.



5. At all times hereinafter mentioned, Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts and omissions of the Defendants alleged herein occurred while said Defendants were acting within the scope of their employment by the Defendant City.

7. Defendants were duly appointed and acting officers, servants, employees, and agents of Defendant City who were acting for, and on behalf of, and with the power and authority vested in them by Defendant City and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

8. Defendants were each and all responsible, in whole and/or in part, for the planning for and/or creation, promulgation, implementation, and/or enforcement of the unconstitutional policies, practices and/or customs complained of herein, and/or condoned,

acquiesced in, adopted, and/or approved of the same, through their acts and/or failures to act, as set forth more fully below.

9. At all times relevant herein, as set forth more fully below, Defendants' actions and/or failures to act were malicious, intentional, knowing, and/or with a deliberate indifference to or a reckless regard for the natural and probable consequences of their acts and/or omissions.

10. Although they were aware of the conduct, present for it, and knew or should have known it was unconstitutional, at no time did any of the Defendants, or any other member of the NYPD, take any steps to intervene in, prevent, or otherwise limit the unconstitutional conduct engaged in by their fellow officers.

11. Each individual Defendant is sued in their individual and official capacities.

12. Venue is proper in the County of Kings as it is where Plaintiff resides, where the Defendant City of New York resides, upon information and belief where many of the individual Defendants operate as police officers, and where the actions complained of herein occurred.

### **STATEMENT OF FACTS**

13. This claim arose on July 24, 2021 at approximately 1:00 a.m., and thereafter, in Kings County, City, and State of New York, when multiple New York City Police Department ("NYPD") members, *inter alia*, unlawfully assaulted, seized, battered, and arrested Plaintiff Micah Phillips, employing unreasonable and excessive force, in violation of Plaintiff's rights.

14. Ms. Phillips and several friends were leaving a house party and dancing on the street on the corner of Dean and Rodgers.

15. Three NYPD vehicles arrived on the scene.

16. Upon information and belief, approximately nine NYPD officers were personally involved in arresting and assaulting Ms. Phillips.

17. All of the exact names and identities of the officers responsible are not currently known, except for the following:

- a. Sergeant Latyna N. Latimore, Shield #1167.
- b. Jonathan McDonald, Shield #13239.

18. A group of members of the NYPD, including the approximately nine officers ultimately personally involved in arresting and assaulting Ms. Phillips (that is, John and Jane Does 1-7 and Defendants Latimore and McDonald) began pushing and yelling at everyone to get onto the sidewalk.

19. All people so instructed complied and moved to the sidewalk.

20. Officers began to engage in a conversation with the host of the party.

21. This conversation led to the violent arrest of said host by members of the NYPD.

22. People began to record — as is their right under New York Civil Rights Law § 79-P, the New Yorker's Right to Monitor Act.

23. At no point in time did any member of the NYPD provide a dispersal order.

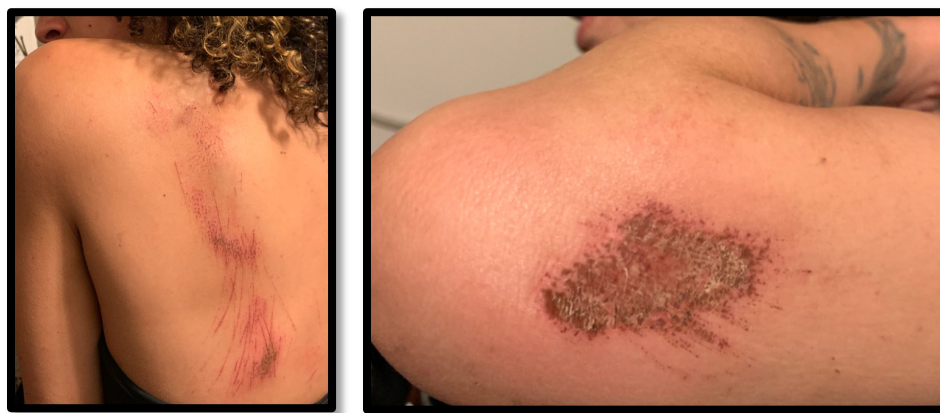
24. Without any dispersal order or probable cause, members of the NYPD began arresting any pedestrian in proximity.

25. Officer Jonathan McDonald #13239 pushed Ms. Phillips, sending her flying several feet and causing injuries to her spine, as well as other injuries below.

26. Defendants used unreasonable and excessive physical force in detaining and arresting Ms. Phillips.

27. Approximately three officers, two John Does and (upon information and belief) Defendant McDonald then dragged Ms. Phillips on the ground, violently yanking her arms and legs.

28. After that, Sergeant Latimore flashed her taser at Ms. Phillips.
29. Defendant Latimore did so with the intent to make Ms. Phillips believe she (Latimore) would use that taser.
30. That act was intended to and did place Ms. Phillips in apprehension of immediate physical danger.
31. A reasonable person in Ms. Phillips' position would understand a police officer flashing a taser, when Ms. Phillips was already on the ground after a violent arrest, to be a threat of immediate physical danger, and understand that the officer had the present capacity to bring about that physical danger.
32. Due to the sheer force of her arrest, Ms. Phillips sustained deep scrapes to the left arm and right shoulder, bruising to the right upper arm, bruising to the right forearm, and large scrapes to the back, including as depicted here:



33. The force of the arrest also caused Ms. Phillips back pain which is not resolved and requires ongoing treatment.
34. Rather than issuing Ms. Phillips a summons or other legal process on the street, Defendants loaded her into a prisoner transport vehicle.
35. Ms. Phillips was in custody for approximately fifteen hours.

36. During this time, she requested medical attention for her injuries but was only offered saline (that is, non-potable) water.

37. Ms. Phillips was also unlawfully deprived of meaningful access to a bathroom and subjected to filthy and unsanitary conditions of confinement.

38. Moreover, an NYPD officer “tested” a taser outside of her cell every fifteen minutes, in a manner designed to impose punitive fear and make Plaintiff fear for imminent use of the taser.

### **DEFENDANT CITY’S POLICY AND/OR PRACTICE OF USING EXCESSIVE FORCE**

39. Defendants used types and levels of force that were excessive and unnecessary force against Ms. Phillips and other pedestrians.

40. In many cases, those uses of force were in contravention of, or inconsistent with, related, written NYPD policies and/or training.

41. In “Police Use of Force in New York City: Findings and Recommendations on NYPD’s Policies and Practices,” an October 1, 2015 report published by the New York City Department of Investigation Office of the Inspector General for the NYPD (“OIG-NYPD”)<sup>2</sup>, the OIG-NYPD made several conclusions critical of the NYPD’s then-extant use of force policies, including, *inter alia*, that:

- a. NYPD’s current use of force policy is vague and imprecise, providing little guidance to individual officers on what actions constitute force;

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<sup>2</sup> “Police Use of Force in New York City: Findings and Recommendations on NYPD’s Policies and Practices,” New York City Department of Investigation, Office of the Inspector General for the NYPD (October 1, 2015), *available at* <http://www1.nyc.gov/site/oignypd/reports/reports.page> (“OIG-NYPD Report”) (last accessed April 1, 2022).



- b. NYPD's current procedures for documenting and reporting force incidents are fragmented across numerous forms, and officers frequently use generic language that fails to capture the specifics of an encounter
- c. NYPD's patrol guide does not properly instruct officers to de-escalate encounters with the public;
- d. NYPD training does not adequately focus on de-escalation; and
- e. In the period reviewed, NYPD frequently failed to impose discipline even when provided with evidence of excessive force.

OIG-NYPD Report at pp. 3-5.

42. After October 1, 2015, the NYPD revised its Patrol Guide provisions, and designed, created, and implemented training, to include "updated definitions concerning force, new policies regarding de-escalation, responsibilities of witness officers in use of force incidents, reporting obligations concerning force incidents, and data analysis on use of force incidents". *See* OIG-NYPD Report at p. 2 *et seq.*; *see also* NYPD Patrol Guide Section 221-01<sup>3</sup> ("Force Guidelines") and 221-02<sup>4</sup> ("Use of Force"), issued and effective June 27, 2016 (implementing changes to NYPD use of force policies in the form of revised written guidelines, incorporated into the NYPD's Patrol Guide).

43. Under those revised NYPD written policies and procedures, NYPD members who use force are required to file written Threat, Resistance, and Injury ("TRI") reports when they use certain force, including, but not limited to, hand strikes, foot strikes, forcible take-downs,

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<sup>3</sup> Available online via the New York City Civilian Complaint Review Board ("CCRB") website at <http://www.nyc.gov/html/ccrb/downloads/pdf/2016pg/pg221-01-force-guidelines.pdf>.

<sup>4</sup> Available online via the New York City Civilian Complaint Review Board website at <http://www.nyc.gov/html/ccrb/downloads/pdf/2016pg/pg221-02-use-of-force.pdf>.

impact weapons (such as batons), and/or force that causes physical injuries, including bruising or swelling and the like. And supervisors are also required to conduct investigations and fill out TRI reports related to such uses of force.<sup>5</sup>

44. Defendants failed to document, and/or require that fellow Defendants and/or other fellow NYPD members document and failed to investigate and/or supervise fellow NYPD members regarding, uses of force in accordance with related NYPD policies and/or training.

**FIRST CLAIM FOR RELIEF**  
**Excessive Force**

***Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution***  
**Against Defendants Latimore, McDonald, and John and Jane Does 1-7**

45. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

46. Defendants' uses of force against Plaintiff were unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

47. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of Plaintiff's federal, state, and/or other legal rights; caused Plaintiff's bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

48. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

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<sup>5</sup> "Use of Force: Revised NYPD Policy," NYPD Use of Force Update- June 2016 (June 2016), at pp. 4-5, *available at* <https://www.prisonlegalnews.org/media/publications/Use%20of%20Force%20-%20Revised%20NYPD%20Policy%20Booklet,%20NYPD,%202016.pdf> ("NYPD Use of Force Update") (last accessed April 1, 2022) (footnotes omitted).

**SECOND CLAIM FOR RELIEF****Due Process**

***Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Protected Under the Fifth and Fourteenth Amendments to the United States Constitution Against Defendants Latimore, McDonald, and John and Jane Does 1-7***

49. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

50. As described above, Defendants enforced offenses in a manner that rendered them constitutionally void for vagueness and/or overbroad, such that their enforcement against Plaintiff violated their Due Process rights, in that Defendants' enforcement in connection with those offenses failed to provide and/or reflected the absence of adequately clear standards to guide police officials' extremely broad discretion to arrest anyone at their whim, based on *ad hoc* determinations, often without fair warning.

51. For example, in Ms. Phillips' case, NYPD members attacked, arrested, and prosecuted Ms. Phillips although she had not been given and refused a dispersal order.

52. Additionally, as discussed elsewhere herein, Defendants City, de Blasio, Shea, and/or Monahan designed and/or implemented policies and practices pursuant to which those Defendants who ordered, effected, and otherwise participated in seizing and/or retaining Plaintiff's property and/or detaining Plaintiff in the conditions as described subjected Plaintiff to the violations of Plaintiff's Due Process rights described elsewhere herein.

53. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of Plaintiff's federal, state, and/or other legal rights; caused Plaintiff's bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

54. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

**THIRD CLAIM FOR RELIEF**

**Municipal Liability**

***Pursuant to 42 U.S.C. 1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978)  
for Defendants' Violations of Plaintiff's Rights Under the Fourth and Fourteenth  
Amendments to the United States Constitution  
Against Defendant City of New York***

55. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

56. The facts pleaded above describe the policies, practices, and customs Defendants subjected the Plaintiff and other protesters and witnesses to, including, but not limited to: uses of excessive force, employing crowd control tactics such as pushing, corralling, encircling, or otherwise trapping people, without fair warning; using excessively tight and injurious handcuffs, including – but not limited to - flex-cuffs; failing to loosen or remove over-tight cuffs; and subjecting arrestees to lengthy detentions and lengthy detentions and arrest processing at centralized arrest processing locations, exposing them to searches, property seizures, and unhealthy and conditions of confinement, in lieu of brief street detentions.

57. All of the wrongful acts or omissions complained of herein were carried out by the individual named and unnamed police officer defendants pursuant to: (a) formal policies, rules, and procedures of Defendant City; (b) actions and decisions by Defendant City's policymaking agents including, but not limited to, Defendant de Blasio, Defendant Shea, and Defendant Monahan; (c) customs, practices, and usage of the NYPD that are so widespread and pervasive as to constitute *de facto* policies accepted, encouraged, condoned, ratified, sanctioned, and/or enforced by Defendant City, Defendant de Blasio, Defendant Shea, Defendant Monahan,

and other policymaking officials; (d) Defendant City's deliberate indifference to Plaintiff's rights secured by the Fourth and Fourteenth Amendments of the United States Constitution, as evidenced by the City's failures, and the failures of the City's policymaking agents, to train, supervise, and discipline NYPD officers, despite full knowledge of the officers' wrongful acts, as described herein.

58. Also, as outlined elsewhere herein, Defendants City, de Blasio, Shea, and/or Monahan failed to train, supervise, investigate, and/or discipline NYPD members in connection with Defendant City's policing.

59. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of Plaintiff's federal, state, and/or other legal rights; caused Plaintiff's bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

60. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

#### **FOURTH CLAIM FOR RELIEF**

##### **N.Y.C. Admin. C. §§ 8-801 *et seq.*, "Qualified Immunity Repeal" Claims Against All Defendants**

61. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

62. N.Y.C. Admin. C. § 8-803 provides as follows in relevant parts:

- a. "A covered individual who, under color of any law, ordinance, rule, regulation, custom or usage, subjects or causes to be subjected, including through failure to intervene, any other natural person to the deprivation of any right that is created, granted or protected by section 8-802 is liable to the person aggrieved for legal or equitable relief or any other appropriate relief"

- b. “The employer of a covered individual who, under color of any law, ordinance, rule, regulation, custom or usage, subjects or causes to be subjected, including through failure to intervene, any other natural person to the deprivation of any right that is created, granted or protected by section 8-802 is liable, based upon the conduct of such covered individual, to the person aggrieved for legal or equitable relief or any other appropriate relief.”
- c. “A person aggrieved may make a claim pursuant to subdivision a of this section in a civil action in any court of competent jurisdiction by filing a complaint setting forth facts pertaining to the deprivation of any right created, granted or protected by section 8-802 and requesting such relief as such person aggrieved considers necessary to insure the full enjoyment of such right.”

63. Because a “‘covered individual’ means [any] employee of the police department,” Defendants Latimore, McDonald, and NYPD Members John and Jane Does No. 1-7 are all covered individuals. § 8-801.

64. Plaintiff is a “person aggrieved” because she was, at a minimum, “is allegedly subjected to, or allegedly caused to be subjected to, the deprivation of a right created, granted or protected by section 8-802 by a covered individual even if the only injury allegedly suffered by such natural person is the deprivation of such right.” *Id.*

65. Defendant City is liable as an employer, as set out above.

66. Defendants’ uses of force against Plaintiff were unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

67. As a result of Defendants’ acts and omissions, Defendants deprived Plaintiff of Plaintiff’s federal, state, and/or other legal rights; caused Plaintiff’s bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

68. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

69. It is not a defense to liability under §§ 8-801 et seq. that a covered individual has qualified immunity or any other substantially equivalent immunity.

70. Pursuant to §8-805, the Court should award compensatory and punitive damages against all parties (including the City, pursuant to the administrative code), reasonable fees and court costs, a restraining order.

### **DEMAND FOR A JURY TRIAL**

Pursuant to Fed. R. Civ. P. 38, Plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

### **DEMAND FOR JUDGMENT**

WHEREFORE, Plaintiff demands judgment against the individual Defendants and the City of New York as follows:

- i. Actual and punitive damages against the individual Defendants in an amount to be determined at trial;
- ii. Actual damages in an amount to be determined at trial against the City of New York, and punitive damages pursuant to N.Y.C. Admin. C. § 8-805(1)(ii);
- iii. An appropriate restraining order pursuant to N.Y.C. Admin. C. § 8-805(3)
- iv. Statutory attorney's fees, disbursements, and costs of the action pursuant to, *inter alia*, 42 U.S.C. § 1988, N.Y.C. Admin. L. § 8-805(2), and New York common law; and
- v. Such other relief as the Court deems just and proper.

Dated: Ridgewood (Queens), New York  
July 2, 2024

**COHEN&GREEN P.L.L.C.**

By:   
Elena L. Cohen  
J. Remy Green

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**ATTORNEY'S VERIFICATION**

I, Elena L. Cohen, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1. I am the attorney of record for the Plaintiff.
2. I have read the preceding Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
3. I make this verification because Plaintiff does not reside in the County (Queens) where I maintain my offices.

Dated: Ridgewood (Queens), New York  
July 2, 2024

  
Elena L. Cohen

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